

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 2, 2026
8:30 a.m./1:30 p.m.

19. HOLLIE WALLACE V. JASON WALLACE

24FL1139

Petitioner filed a Request for Order (RFO) on December 18, 2025, seeking child custody and parenting plan orders, as well as orders regarding the division of property. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on January 15, 2026, and a review hearing on March 12, 2026. Proof of Service shows Respondent was mail served on December 24, 2025. However, the Proof of Service does not show Respondent was served with a blank FL-320 form.

Only Petitioner appeared at the CCRC appointment on January 15th. As such, a single parent report was filed with the court on January 15th. Copies were mailed to the parties the same day.

Petitioner filed a Declaration on January 22, 2026. There is no Proof of Service for this document, therefore, the court has not considered it.

Petitioner appeared at the hearing on March 12, 2026. Respondent failed to appear. The court found good cause to continue the hearing to allow Petitioner time to perfect service. The court set a further review hearing for May 14, 2026, and directed Petitioner to serve all the required documents as well as a copy of the minute order from the March 12, 2026 hearing on Respondent.

Petitioner filed a Proof of Service as well as an address verification showing Respondent was served by overnight delivery on April 21, 2026.

Petitioner appeared for the hearing on May 14, 2026. The court found good cause to continue to allow Petitioner additional time to properly serve Respondent.

Respondent was served by mail with the May 14, 2026 minute order on May 21, 2026.

Respondent has not filed a Responsive Declaration.

The court has read and considered the filings as outlined above. The court finds Respondent has failed to participate in any of the CCRC appointments scheduled. Further, Respondent has failed to file a Responsive Declaration to Request for Order, therefore, the court deems his failure to do so as an admission that Petitioner's moving papers have merit. See El Dorado County, Local Rule 7.10.02(C).

The court finds Petitioner's requested orders for custody and a parenting plan are in the minors' best interests. The court grants Petitioner sole legal and physical custody of the

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 2, 2026
8:30 a.m./1:30 p.m.

minors. Respondent shall have professionally supervised parenting time in California. When Petitioner is in El Dorado County, California, he may have professionally supervised parenting time two times per week for two hours each. Respondent shall be responsible for the costs of supervision. Respondent shall have telephonic and video calls with the minors up to three times per week, on Tuesday, Thursday, and Saturday at 6 PM Pacific Time.

As to Petitioner's request for the court to declare that there is no community or separate property to be divided, the request is denied. Petitioner failed to file any supportive documentation for this claim. Petitioner may request the matter be set for a prove-up hearing on the dissolution when appropriate.

All prior orders not in conflict with these orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #19: THE COURT FINDS RESPONDENT HAS FAILED TO PARTICIPATE IN ANY OF THE CCRC APPOINTMENTS SCHEDULED. FURTHER, RESPONDENT HAS FAILED TO FILE A RESPONSIVE DECLARATION TO REQUEST FOR ORDER, THEREFORE, THE COURT DEEMS HIS FAILURE TO DO SO AS AN ADMISSION THAT PETITIONER'S MOVING PAPERS HAVE MERIT. SEE EL DORADO COUNTY, LOCAL RULE 7.10.02(C).

THE COURT FINDS PETITIONER'S REQUESTED ORDERS FOR CUSTODY AND PARENTING PLAN ARE IN THE MINORS' BEST INTERESTS. THE COURT GRANTS PETITIONER SOLE LEGAL AND PHYSICAL CUSTODY OF THE MINORS. RESPONDENT SHALL HAVE PROFESSIONALLY SUPERVISED PARENTING TIME IN CALIFORNIA. WHEN PETITIONER IS IN EL DORADO COUNTY, CALIFORNIA, HE MAY HAVE PROFESSIONALLY SUPERVISED PARENTING TIME TWO TIMES PER WEEK FOR TWO HOURS EACH. RESPONDENT SHALL BE RESPONSIBLE FOR THE COSTS OF SUPERVISION. RESPONDENT SHALL HAVE TELEPHONIC AND VIDEO CALLS WITH THE MINORS UP TO THREE TIMES PER WEEK, ON TUESDAY, THURSDAY, AND SATURDAY AT 6 PM PACIFIC TIME.

AS TO PETITIONER'S REQUEST FOR THE COURT TO DECLARE THAT THERE IS NO COMMUNITY OR SEPARATE PROPERTY TO BE DIVIDED, THE REQUEST IS DENIED. PETITIONER FAILED TO FILE ANY SUPPORTIVE DOCUMENTATION FOR THIS CLAIM. PETITIONER MAY REQUEST THE MATTER BE SET FOR A PROVE-UP HEARING ON THE DISSOLUTION WHEN APPROPRIATE.

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

July 2, 2026

8:30 a.m./1:30 p.m.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.